

ment grounds. See *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U.S. 171, 188 (2012) (the First Amendment’s “ministerial exception” protects “the internal governance of [a] church”); 80 Fed. Reg. 41325 (2015) (the exemption “recogni[zes] [the] particular sphere of autonomy [afforded to] houses of worship . . . consistent with their special status under longstanding tradition in our society”).¹⁵ Even if the house-of-worship exemption extends beyond what the First Amendment would require, see *ante*, at 706, n. 1 (opinion of KAGAN, J.), that extension, as just explained, cannot be extracted from the ACA’s text.¹⁶

III

Because I conclude that the blanket exemption gains no aid from the ACA, I turn to the Government’s alternative argument. The *religious* exemption, if not the moral exemption, the Government urges, is necessary to protect religious freedom. The Government does not press a free exercise argument, see *supra*, at 711, and n. 1, instead invoking RFRA. Brief for HHS et al. 20–31. That statute instructs that the “Government shall not substantially burden a person’s exercise of religion even if the burden results from a rule of general applicability,” unless doing so “is the least

¹⁵ On the broad scope the Court today attributes to the “ministerial exception,” see *Our Lady of Guadalupe School v. Morrissey-Berru*, 591 U.S. 732 (2020).

¹⁶ The Government does not argue that my view of the limited compass of §300gg–13(a)(4) imperils the self-certification accommodation. Brief for HHS et al. 19–20. But see *ante*, at 679, n. 9 (opinion of the Court). That accommodation aligns with the Court’s decisions under the Religious Freedom Restoration Act of 1993 (RFRA). See *infra*, at 723–724. It strikes a balance between women’s health and religious opposition to contraception, preserving women’s access to seamless, no-cost contraceptive coverage, but imposing the obligation to provide such coverage directly on insurers, rather than on the objecting employer. See *supra*, at 715–716; *infra*, at 727–729. The blanket exemption, in contrast, entirely disregards women employees’ preventive-care needs.

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restrictive means of furthering [a] compelling governmental interest.” 42 U.S.C. § 2000bb–1(a), (b).

A

1

The parties here agree that federal agencies may craft accommodations and exemptions to cure violations of RFRA. See, e.g., Brief for Respondents 36.¹⁷ But that authority is not unbounded. *Cutter v. Wilkinson*, 544 U.S. 709, 720 (2005) (construing Religious Land Use and Institutionalized Persons Act of 2000, the Court cautioned that “adequate account” must be taken of “the burdens a requested accommodation may impose on nonbeneficiaries” of the Act); *Caldor*, 472 U.S., at 708–710 (invalidating state statute requiring employers to accommodate an employee’s religious observance for failure to take into account the burden such an accommodation would impose on the employer and other employees). “[O]ne person’s right to free exercise must be kept in harmony with the rights of her fellow citizens.” *Hobby Lobby*, 573 U.S., at 765, n. 25 (GINSBURG, J., dissenting). See also *id.*, at 746 (“[Y]our right to swing your arms ends just where the other man’s nose begins.” (quoting Chafee, *Freedom of Speech in War Time*, 32 Harv. L. Rev. 932, 957 (1919))).

In this light, the Court has repeatedly assumed that any religious accommodation to the contraceptive-coverage requirement would preserve women’s continued access to seamless, no-cost contraceptive coverage. See *Zubik v. Burwell*, 578 U.S. 403, 408 (2016) (*per curiam*) (“[T]he parties on remand should be afforded an opportunity to arrive

¹⁷ But see, e.g., Brief for Professors of Criminal Law et al. as *Amici Curiae* 8–11 (RFRA does not grant agencies independent rulemaking authority; instead, laws allegedly violating RFRA must be challenged in court). No party argues that agencies can act to cure violations of RFRA only after a court has found a RFRA violation, and this opinion does not adopt any such view.

at an approach . . . that accommodates petitioners' religious exercise while . . . ensuring that women covered by petitioners' health plans receive full and equal health coverage, including contraceptive coverage." (internal quotation marks omitted)); *Wheaton College v. Burwell*, 573 U.S. 958, 959 (2014) ("Nothing in this interim order affects the ability of applicant's employees and students to obtain, without cost, the full range of [FDA] approved contraceptives."); *Hobby Lobby*, 573 U.S., at 692 ("There are other ways in which Congress or HHS could equally ensure that every woman has cost-free access to . . . all [FDA]-approved contraceptives. In fact, HHS has already devised and implemented a system that seeks to respect the religious liberty of religious nonprofit corporations while ensuring that the employees of these entities have precisely the same access to all FDA-approved contraceptives as employees of [other] companies.").

The assumption made in the above-cited cases rests on the basic principle just stated, one on which this dissent relies: While the Government may "accommodate religion beyond free exercise requirements," *Cutter*, 544 U.S., at 713, when it does so, it may not benefit religious adherents at the expense of the rights of third parties. See, *e.g., id.*, at 722 ("[A]n accommodation must be measured so that it does not override other significant interests."); *Caldor*, 472 U.S., at 710 (religious exemption was invalid for its "unyielding weighting in favor of" interests of religious adherents "over all other interests"). Holding otherwise would endorse "the regulatory equivalent of taxing non-adherents to support the faithful." Brief for Church-State Scholars as *Amici Curiae* 3.

The expansive religious exemption at issue here imposes significant burdens on women employees. Between 70,500 and 126,400 women of childbearing age, the Government estimates, will experience the disappearance of the contracp-

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tive coverage formerly available to them, 83 Fed. Reg. 57578–57580; indeed, the numbers may be even higher.¹⁸ Lacking any alternative insurance coverage mechanism, see *supra*, at 716, the exemption leaves women two options, neither satisfactory.

The first option—the one suggested by the Government in its most recent rulemaking, 82 Fed. Reg. 47803—is for women to seek contraceptive care from existing government-funded programs. Such programs, serving primarily low-income individuals, are not designed to handle an influx of tens of thousands of previously insured women.¹⁹ Moreover, as the Government has acknowledged, requiring women “to take steps to learn about, and to sign up for, a new health benefit” imposes “additional barriers,” “mak[ing] that coverage accessible to fewer women.” 78 Fed. Reg. 39888. Finally, obtaining care from a government-funded program instead of one’s regular care provider creates a continuity-of-

¹⁸ The Government notes that 2.9 million people were covered by the 209 plans that previously utilized the self-certification accommodation. 83 Fed. Reg. 57577. One hundred nine of those plans covering 727,000 people, the Government estimates, will use the religious exemption, while 100 plans covering more than 2.1 million people will continue to use the self-certification accommodation. *Id.*, at 57578. If more plans, or plans covering more people, use the new exemption, more women than the Government estimates will be affected.

¹⁹ Title X “is the only federal grant program dedicated solely to providing individuals with comprehensive family planning and related preventive health services.” HHS, About Title X Grants, www.hhs.gov/opa/title-x-family-planning/about-title-x-grants/index.html. A recent rule makes women who lose contraceptive coverage due to the religious exemption eligible for Title X services. See 84 Fed. Reg. 7734 (2019). Expanding *eligibility*, however, “does nothing to ensure Title X providers actually have capacity to meet the expanded client population.” Brief for National Women’s Law Center et al. as *Amici Curiae* 22. Moreover, that same rule forced 1,041 health providers, serving more than 41% of Title X patients, out of the Title X provider network due to their affiliation with abortion providers. 84 Fed. Reg. 7714; Brief for Planned Parenthood Federation of America et al. as *Amici Curiae* 18–19.

care problem, “forc[ing] those] who lose coverage away from trusted providers who know their medical histories.” NWLC Brief 18.

The second option for women losing insurance coverage for contraceptives is to pay for contraceptive counseling and devices out of their own pockets. Notably, however, “the most effective contraception is also the most expensive.” ACOG Brief 14–15. “[T]he cost of an IUD [intrauterine device],” for example, “is nearly equivalent to a month’s full-time pay for workers earning the minimum wage.” *Hobby Lobby*, 573 U.S., at 762 (GINSBURG, J., dissenting). Faced with high out-of-pocket costs, many women will forgo contraception, Brief for 186 Members of Congress 11, or resort to less effective contraceptive methods, 930 F. 3d, at 563.

As the foregoing indicates, the religious exemption “reintroduce[s] the very health inequities and barriers to care that Congress intended to eliminate when it enacted the women’s preventive services provision of the ACA.” NWLC Brief 5. “No tradition, and no prior decision under RFRA, allows a religion-based exemption when [it] would be harmful to others—here, the very persons the contraceptive coverage requirement was designed to protect.” *Hobby Lobby*, 573 U.S., at 764 (GINSBURG, J., dissenting).²⁰ I would therefore hold the religious exemption neither required nor permitted by RFRA.²¹

B

Pennsylvania and New Jersey advance an additional argument: The exemption is not authorized by RFRA, they main-

²⁰ Remarkably, JUSTICE ALITO maintains that stripping women of insurance coverage for contraceptive services imposes no burden. See *ante*, at 703–704 (concurring opinion). He reaches this conclusion because, in his view, federal law does not require the contraceptive coverage denied to women under the exemption. *Ante*, at 703. Congress, however, called upon HRSA to specify contraceptive and other preventive services for women in order to ensure equality in women employees’ access to healthcare, thus safeguarding their health and well-being. See *supra*, at 712–714.

²¹ As above stated, the Government does not defend the moral exemption under RFRA. See *supra*, at 722.

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tain, because the self-certification accommodation it replaced was sufficient to alleviate any substantial burden on religious exercise. Brief for Respondents 36–42. That accommodation, I agree, further indicates the religious exemption’s flaws.

1

For years, religious organizations have challenged the self-certification accommodation as insufficiently protective of their religious rights. See, e.g., *Zubik*, 578 U. S., at 406–407. While I do not doubt the sincerity of these organizations’ opposition to that accommodation, *Hobby Lobby*, 573 U. S., at 758–759 (GINSBURG, J., dissenting), I agree with Pennsylvania and New Jersey that the accommodation does not substantially burden objectors’ religious exercise.

As Senator Hatch observed, “[RFRA] does not require the Government to justify every action that has some effect on religious exercise.” 139 Cong. Rec. 26180 (1993). *Bowen v. Roy*, 476 U. S. 693 (1986), is instructive in this regard. There, a Native American father asserted a sincere religious belief that his daughter’s spirit would be harmed by the Government’s use of her social security number. *Id.*, at 697. The Court, while casting no doubt on the sincerity of this religious belief, explained:

“Never to our knowledge has the Court interpreted the First Amendment to require the Government *itself* to behave in ways that the individual believes will further his or her spiritual development or that of his or her family. The Free Exercise Clause simply cannot be understood to require the Government to conduct its own internal affairs in ways that comport with the religious beliefs of particular citizens.” *Id.*, at 699.²²

²² JUSTICE ALITO disputes the relevance of *Roy*, asserting that the religious adherent in that case faced no penalty for noncompliance with the legal requirement under consideration. See *ante*, at 692–693, n. 5. As JUSTICE ALITO acknowledges, however, the critical inquiry has two parts. See *ante*, at 692–693. It is not enough to ask whether noncompliance entails “substantial adverse practical consequences.” *Ante*, at 692. One must also ask

Roy signals a critical distinction in the Court's religious exercise jurisprudence: A religious adherent may be entitled to religious accommodation with regard to her own conduct, but she is not entitled to "insist that . . . *others* must conform *their* conduct to [her] own religious necessities.'" *Caldor*, 472 U. S., at 710 (quoting *Otten v. Baltimore & Ohio R. Co.*, 205 F. 2d 58, 61 (CA2 1953) (Hand, J.); emphasis added).²³ Counsel for the Little Sisters acknowledged as much when he conceded that religious "employers could [not] object at all" to a "government obligation" to provide contraceptive coverage "imposed directly on the insurers." Tr. of Oral Arg. 41.²⁴

But that is precisely what the self-certification accommodation does. As the Court recognized in *Hobby Lobby*: "When a group-health-insurance issuer receives notice that [an employer opposes coverage for some or all contraceptive services for religious reasons], the issuer must then exclude [that] coverage from the employer's plan and provide separate payments for contraceptive services for plan participants." 573 U. S., at 698–699; see also *id.*, at 738 (Kennedy, J., concurring) ("The accommodation works by requiring *insurance companies* to cover . . . contraceptive coverage for female employees who wish it." (emphasis added)). Under the self-certification accommodation, then, the objecting employer is absolved of any obligation to provide the contracep-

whether compliance substantially burdens religious exercise. Like *Roy*, my dissent homes in on the latter question.

²³ Even if RFRA sweeps more broadly than the Court's pre-*Smith* jurisprudence in some respects, see *Hobby Lobby*, 573 U. S., at 695, n. 3; but see *id.*, at 749–750 (GINSBURG, J., dissenting), there is no cause to believe that Congress jettisoned this fundamental distinction.

²⁴ JUSTICE ALITO ignores the distinction between (1) a request for an accommodation with regard to one's own conduct, and (2) an attempt to require others to conform their conduct to one's own religious beliefs. This distinction is fatal to JUSTICE ALITO's argument that the self-certification accommodation violates RFRA. See *ante*, at 692–696.

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tive coverage to which it objects; that obligation is transferred to the insurer. This arrangement “furthers the Government’s interest [in women’s health] but does not impinge on the [employer’s] religious beliefs.” *Ibid.*; see *supra*, at 727–729.

2

The Little Sisters, adopting the arguments made by religious organizations in *Zubik*, resist this conclusion in two ways. First, they urge that contraceptive coverage provided by an insurer under the self-certification accommodation forms “part of the same plan as the coverage provided by the employer.” Brief for Little Sisters 12 (internal quotation marks omitted). See also Tr. of Oral Arg. 29 (Little Sisters object “to having their plan hijacked”); *ante*, at 694 (ALITO, J., concurring) (Little Sisters object to “maintain[ing] and pay[ing] for a plan under which coverage for contraceptives would be provided”). This contention is contradicted by the plain terms of the regulation establishing that accommodation: To repeat, an insurance issuer “must . . . [*expressly exclude*] contraceptive coverage from the group health insurance coverage provided in connection with the group health plan.” 45 CFR § 147.131(c)(2)(i)(A) (2013) (emphasis added); see *supra*, at 715.²⁵

Second, the Little Sisters assert that “tak[ing] affirmative steps to execute paperwork . . . necessary for the provision of ‘seamless’ contraceptive coverage to their employees” implicates them in providing contraceptive services to women in violation of their religious beliefs. Little Sisters Reply Brief 7. At the same time, however, they have been ada-

²⁵Religious organizations have observed that, under the self-certification accommodation, insurers need not, and do not, provide contraceptive coverage under a separate policy number. Supp. Brief for Petitioners in *Zubik v. Burwell*, O. T. 2015, No. 14–1418, p. 1. This objection does not relate to a religious employer’s own conduct; instead, it concerns the *insurer’s* conduct. See *supra*, at 727–729.

mant that they do not oppose merely “register[ing] their objections” to the contraceptive-coverage requirement. *Ibid.* See also Tr. of Oral Arg. 29, 42–43 (Little Sisters have “no objection to objecting”); *ante*, at 694 (ALITO, J., concurring) (Little Sisters’ “concern was not with notifying the Government that they wished to be exempted from complying with the mandate *per se*”). These statements, taken together, reveal that the Little Sisters do not object to what the self-certification accommodation asks of *them*, namely, attesting to their religious objection to contraception. See *supra*, at 715–716. They object, instead, to the particular use insurance issuers make of that attestation. See *supra*, at 727–729.²⁶ But that use originated from the ACA and its once-implementing regulation, not from religious employers’ self-certification or alternative notice.

* * *

The blanket exemption for religious and moral objectors to contraception formulated by the IRS, EBSA, and CMS is inconsistent with the text of, and Congress’ intent for, both the ACA and RFRA. Neither law authorizes it.²⁷ The original administrative regulation accommodating religious objections to contraception appropriately implemented the ACA and RFRA consistent with Congress’ staunch determination to afford women employees equal access to preventive services, thereby advancing public health and welfare and

²⁶ JUSTICE ALITO asserts that the Little Sisters’ “situation [is] the same as that of the conscientious objector in *Thomas* [v. *Review Bd. of Ind. Employment Security Div.*, 450 U. S. 707, 715 (1981)].” *Ante*, at 695. I disagree. In *Thomas*, a Jehovah’s Witness objected to “work[ing] on weapons,” 450 U. S., at 710, which is what his employer required of him. As above stated, however, the Little Sisters have no objection to objecting, the only other action the self-certification accommodation requires of them.

²⁷ Given this conclusion, I need not address whether the exemption is procedurally invalid. See *ante*, at 683–686 (opinion of the Court).

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women's well-being. I would therefore affirm the judgment of the Court of Appeals.²⁸

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²⁸ Although the Court does not reach the issue, the District Court did not abuse its discretion in issuing a nationwide injunction. The Administrative Procedure Act contemplates nationwide relief from invalid agency action. See 5 U. S. C. § 706(2) (empowering courts to “hold unlawful and set aside agency action”). Moreover, the nationwide reach of the injunction “was ‘necessary to provide complete relief to the plaintiffs.’” *Trump v. Hawaii*, 585 U. S. 667, 751, n. 13 (2018) (SOTOMAYOR, J., dissenting) (quoting *Madsen v. Women’s Health Center, Inc.*, 512 U. S. 753, 765 (1994)). Harm to Pennsylvania and New Jersey, the Court of Appeals explained, occurs because women who lose benefits under the exemption “will turn to state-funded services for their contraceptive needs and for the unintended pregnancies that may result from the loss of coverage.” 930 F. 3d, at 562. This harm is not bounded by state lines. The Court of Appeals noted, for example, that some 800,000 residents of Pennsylvania and New Jersey work—and thus receive their health insurance—out of State. *Id.*, at 576. Similarly, many students who attend colleges and universities in Pennsylvania and New Jersey receive their health insurance from their parents’ out-of-state health plans. *Ibid.*

Syllabus

OUR LADY OF GUADALUPE SCHOOL *v.*
MORRISSEY-BERRUCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 19–267. Argued May 11, 2020—Decided July 8, 2020*

The First Amendment protects the right of religious institutions “to decide for themselves, free from state interference, matters of church government as well as those of faith and doctrine.” *Kedroff v. Saint Nicholas Cathedral of Russian Orthodox Church in North America*, 344 U.S. 94, 116. Applying this principle, this Court held in *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U.S. 171, that the First Amendment barred a court from entertaining an employment discrimination claim brought by an elementary school teacher, Cheryl Perich, against the religious school where she taught. Adopting the so-called “ministerial exception” to laws governing the employment relationship between a religious institution and certain key employees, the Court found relevant Perich’s title as a “Minister of Religion, Commissioned,” her educational training, and her responsibility to teach religion and participate with students in religious activities. *Id.*, at 190–191.

In these cases, two elementary school teachers at Roman Catholic schools in the Archdiocese of Los Angeles had teaching responsibilities similar to Perich’s. Agnes Morrissey-Berru taught at Our Lady of Guadalupe School (OLG), and Kristen Biel taught at St. James School. Both were employed under nearly identical agreements that set out the schools’ mission to develop and promote a Catholic school faith community; imposed commitments regarding religious instruction, worship, and personal modeling of the faith; and explained that teachers’ performance would be reviewed on those bases. Each was also required to comply with her school’s faculty handbook, which set out similar expectations. Each taught religion in the classroom, worshipped with her students, prayed with her students, and had her performance measured on religious bases.

Both teachers sued their schools after their employment was terminated. Morrissey-Berru claimed that OLG had demoted her and had failed to renew her contract in order to replace her with a younger teacher in violation of the Age Discrimination in Employment Act of

*Together with No. 19–348, *St. James School v. Biel*, as *Personal Representative of the Estate of Biel*, on certiorari to the same Court.

Syllabus

1967. OLG invoked *Hosanna-Tabor*'s "ministerial exception" and successfully moved for summary judgment, but the Ninth Circuit reversed, holding that Morrissey-Berru did not fall within the exception because she did not have the formal title of "minister," had limited formal religious training, and did not hold herself out publicly as a religious leader. Biel alleged that St. James discharged her because she had requested a leave of absence to obtain breast cancer treatment. Like OLG, St. James obtained summary judgment under the "ministerial exception." But the Ninth Circuit reversed, reasoning that Biel lacked Perich's credentials, religious training, and ministerial background.

Held: The First Amendment's Religion Clauses foreclose the adjudication of Morrissey-Berru's and Biel's employment discrimination claims. Pp. 746–762.

(a) The independence of religious institutions in matters of "faith and doctrine" is closely linked to independence in what the Court has termed "matters of church government." *Hosanna-Tabor*, 565 U. S., at 186. For this reason, courts are bound to stay out of employment disputes involving those holding certain important positions with churches and other religious institutions. Pp. 746–747.

(b) When the "ministerial exception" reached this Court in *Hosanna-Tabor*, the Court looked to precedent and the "background" against which "the First Amendment was adopted," 565 U. S., at 183, and unanimously recognized that the Religion Clauses foreclose certain employment discrimination claims brought against religious organizations, *id.*, at 188. Pp. 747–749.

(c) In *Hosanna-Tabor*, the Court applied the "ministerial exception" but declined "to adopt a rigid formula for deciding when an employee qualifies as a minister." 565 U. S., at 190. Instead, the Court identified four relevant circumstances of Perich's employment at an Evangelical Lutheran school. First, Perich's church had given her the title of "minister, with a role distinct from that of most of its members." *Id.*, at 191. Second, her position "reflected a significant degree of religious training followed by a formal process of commissioning." *Ibid.* Third, she "held herself out as a minister of the Church" and claimed certain tax benefits. *Id.*, at 191–192. Fourth, her "job duties reflected a role in conveying the Church's message and carrying out its mission." *Id.*, at 192. Pp. 749–751.

(d) A variety of factors may be important in determining whether a particular position falls within the ministerial exception. The circumstances that informed the Court's decision in *Hosanna-Tabor* were relevant because of their relationship to Perich's "role in conveying the Church's message and carrying out its mission." 565 U. S., at 192. But

the recognition of the significance of those factors in Perich's case did not mean that they must be met in all other cases. What matters is what an employee does. Implicit in the *Hosanna-Tabor* decision was a recognition that educating young people in their faith, inculcating its teachings, and training them to live their faith are responsibilities that lie at the very core of a private religious school's mission. Pp. 751–756.

(e) Applying this understanding of the Religion Clauses here, it is apparent that Morrissey-Berru and Biel qualify for the exception recognized in *Hosanna-Tabor*. There is abundant record evidence that they both performed vital religious duties, such as educating their students in the Catholic faith and guiding their students to live their lives in accordance with that faith. Their titles did not include the term “minister” and they had less formal religious training than Perich, but their core responsibilities were essentially the same. And their schools expressly saw them as playing a vital role in carrying out the church's mission. A religious institution's explanation of the role of its employees in the life of the religion in question is important. Pp. 756–757.

(f) The Ninth Circuit mistakenly treated the circumstances the Court found relevant in *Hosanna-Tabor* as a checklist of items to be assessed and weighed against each other. That rigid test produced a distorted analysis. First, it invested undue significance in the fact that Morrissey-Berru and Biel did not have clerical titles. Second, it assigned too much weight to the fact that Morrissey-Berru and Biel had less formal religious schooling than Perich. Third, the *St. James* panel inappropriately diminished the significance of Biel's duties. Respondents would make *Hosanna-Tabor*'s governing test even more rigid. And they go further astray in suggesting that an employee can never come within the *Hosanna-Tabor* exception unless the employee is a “practicing” member of the religion with which the employer is associated. Deciding such questions risks judicial entanglement in religious issues. Pp. 757–762. No. 19–267, 769 Fed. Appx. 460; No. 19–348, 911 F. 3d 603, reversed and remanded.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, BREYER, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 762. SOTOMAYOR, J., filed a dissenting opinion, in which GINSBURG, J., joined, *post*, p. 766.

Eric C. Rassbach argued the cause for petitioners. With him on the briefs were *Daniel H. Blomberg*, *Diana M. Verm*, *Adèle Auxier Keim*, *Margaret G. Graf*, *John J. Manier*,

Counsel

Linda Miller Savitt, Stephanie Kantor, and Jack S. Sholkoff.

Morgan L. Ratner argued the cause for the United States as *amicus curiae* urging reversal. With her on the brief were *Solicitor General Francisco, Assistant Attorney General Dreiband, Deputy Solicitor General Wall, Deputy Assistant Attorney General Maugeri, Michael R. Huston, Eric W. Treene, Sharon Fast Gustafson, and Rachel N. Morrison.*

Jeffrey L. Fisher argued the cause for respondents. With him on the brief were *Jennifer A. Lipski, Joseph M. Lovretovich, Cathryn G. Fund, Bradley N. Garcia, and Yaira Dubin.*[†]

[†]A brief of *amici curiae* urging reversal in No. 19–267 was filed for the State of Alaska et al. by *Kevin G. Clarkson*, Attorney General of Alaska, *Dario Borghesan*, Chief Assistant Attorney General, and *Katherine Demarest and Anna Jay*, Assistant Attorneys General, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Alabama, *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas, *Christopher M. Carr* of Georgia, *Curtis T. Hill, Jr.*, of Indiana, *Daniel Cameron* of Kentucky, *Jeff Landry* of Louisiana, *Eric S. Schmitt* of Missouri, *Timothy C. Fox* of Montana, *Douglas J. Peterson* of Nebraska, *Dave Yost* of Ohio, *Mike Hunter* of Oklahoma, *Alan Wilson* of South Carolina, *Herbert H. Slatery III* of Tennessee, *Ken Paxton* of Texas, and *Sean D. Reyes* of Utah.

Briefs of *amici curiae* urging reversal in both cases were filed for the American Center for Law and Justice by *Jay Alan Sekulow, Stuart J. Roth, Colby M. May, and Laura B. Hernandez*; for the American Jewish Committee et al. by *Michael H. McGinley* and *Steven B. Feirson*; for the Association of Classical Christian Schools et al. by *Misha Tseytlin, Kristen K. Waggoner, David A. Cortman, John J. Bursch, Gregory Baylor, Rory T. Gray, and Brett B. Harvey*; for the Billy Graham Evangelistic Association et al. by *Frederick W. Claybrook, Jr., Steven W. Fitschen, James A. Davids, and David A. Bruce*; for the Christian and Missionary Alliance et al. by *Stuart J. Lark*; for the Christian Legal Society et al. by *Reed N. Smith, Kimberlee Wood Colby, and Thomas C. Berg*; for Church of God in Christ, Inc., et al., by *Thomas H. Dupree, Jr., and Nathan J. Diamant*; for the Church of Jesus Christ of Latter-day Saints et al. by *Alexander Dushku and R. Shawn Gunnarson*; for COLPA et al. by *Nathan Lewin, Alyza D. Lewin, and Dennis Rapps*; for Columbia International University et al. by *Christian M. Poland*; for the Council for Christian Colleges

JUSTICE ALITO delivered the opinion of the Court.

These cases require us to decide whether the First Amendment permits courts to intervene in employment disputes involving teachers at religious schools who are entrusted with the responsibility of instructing their students

et al. by *Gene C. Schaerr, Erik S. Jaffe, Hannah C. Smith, and Kathryn E. Tarbert*; for the Ethics and Public Policy Center by *Matthew T. Nelson* and *Conor B. Dugan*; for the Ethics and Religious Liberty Commission of the Southern Baptist Convention et al. by *Sarah M. Harris*; for the First Liberty Institute by *Kelly J. Shackelford, Hiram S. Sasser III, Michael Berry, and Stephanie N. Taub*; for the Foundation for Moral Law by *John A. Eidsmoe*; for Franciscan University of Steubenville by *Linda T. Coberly*; for the General Conference of Seventh-day Adventists et al. by *Eric D. McArthur*; for the Independent Women's Law Center by *Donald M. Falk* and *Roger V. Abbott*; for Inner Life Fund by *James L. Hirsén* and *Deborah J. Dewart*; for InterVarsity Christian Fellowship/USA et al. by *Steffen N. Johnson, Susan Creighton, and Michael McConnell*; for Judicial Watch, Inc., by *Meredith L. Di Liberto* and *James F. Peterson*; for the National Catholic Educational Association by *James A. Sonne*; for the National Right to Work Legal Defense Foundation, Inc., by *Bruce N. Cameron* and *Frank D. Garrison*; for Partnership Schools by *John P. Elwood, Dirk C. Phillips, and Sally L. Pei*; for Stephen Wise Temple et al. by *Paul D. Clement, Erin E. Murphy, Jeremy B. Rosen, Felix Shafir, Joshua C. McDaniel, Stephen E. Kvavil, and Aaron H. Aizenberg*; for the United States Conference of Catholic Bishops by *Aaron M. Streett, Anthony R. Picarello, Jr., Jeffrey Hunter Moon, and Michael F. Moses*; for John D. Inazu by *Zachary G. Parks*; for Douglas Laycock et al. by *Victoria Dorfman, Anthony J. Dick, and Todd R. Geremia*; for Sen. Mike Lee et al. by *Jesse Panuccio*; and for Asma T. Uddin by *Daniel P. Kearney, Jr.*

Heather L. Weaver, Daniel Mach, David D. Cole, Louise Melling, Joshua A. Block, Melissa Goodman, Richard B. Katskee, Kenneth D. Upton, Jr., and Steven M. Freeman filed a brief for the American Civil Liberties Union et al. as *amici curiae* urging reversal in No. 19–267 and affirmance in No. 19–348.

Briefs of *amici curiae* urging affirmance in both cases were filed for the Commonwealth of Virginia et al. by *Toby J. Heytens*, Solicitor General of Virginia, *Mark R. Herring*, Attorney General, *Martine E. Cicconi* and *Michelle S. Kallen*, Deputy Solicitors General, *Jessica Merry Samuels*, Assistant Solicitor General, and *Keonna Carter Austin* and *Samuel T. Towell*, Deputy Attorneys General, and by the Attorneys General for their respective jurisdictions as follows: *Xavier Becerra* of California, *Phil Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Karl A. Ra-*

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in the faith. The First Amendment protects the right of religious institutions “to decide for themselves, free from state interference, matters of church government as well as those of faith and doctrine.” *Kedroff v. Saint Nicholas Cathedral of Russian Orthodox Church in North America*, 344 U. S. 94, 116 (1952). Applying this principle, we held in *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171 (2012), that the First Amendment barred a court from entertaining an employment discrimination claim brought by an elementary school teacher, Cheryl Perich, against the religious school where she taught. Our decision built on a line of lower court cases adopting what was dubbed the “ministerial exception” to laws governing the employment relationship between a religious institution and certain key employees. We did not announce “a rigid formula” for determining whether an employee falls within this exception, but we identified circumstances that we found relevant in that case, including Perich’s title as a “Minister of Religion, Commissioned,” her educational training, and her responsibility to teach religion and participate with students in religious activities. *Id.*, at 190–191.

cine of the District of Columbia, *Kwame Raoul* of Illinois, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Gurbir Singh Grewal* of New Jersey, *Letitia James* of New York, *Ellen F. Rosenblum* of Oregon, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan, Jr.*, of Vermont, and *Robert W. Ferguson* of Washington; for the Center for Inquiry, Inc., et al., by *Edward Tabash* and *Monica L. Miller*; for Child USA et al. by *Leslie C. Griffin*; for Clergy and Laity United for Economic Justice et al. by *Ryan H. Wu*; for the Freedom From Religion Foundation et al. by *Patrick Elliott*; for the National Employment Lawyers Association et al. by *Michael L. Foreman*; and for the National Women’s Law Center et al. by *Kevin K. Russell*, *Fatima Goss Graves*, *Emily Martin*, *Sunu P. Chandy*, *Vanita Gupta*, and *Michael Zubrensky*.

Briefs of *amici curiae* in both cases were filed for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for The Rutherford Institute by *Nathan A. Adams IV* and *John W. Whitehead*; and for Torah Umesorah by *Igor V. Timofeyev*, *Michael S. Wise*, and *Joyanne Joseph*.

In the cases now before us, we consider employment discrimination claims brought by two elementary school teachers at Catholic schools whose teaching responsibilities are similar to Perich’s. Although these teachers were not given the title of “minister” and have less religious training than Perich, we hold that their cases fall within the same rule that dictated our decision in *Hosanna-Tabor*. The religious education and formation of students is the very reason for the existence of most private religious schools, and therefore the selection and supervision of the teachers upon whom the schools rely to do this work lie at the core of their mission. Judicial review of the way in which religious schools discharge those responsibilities would undermine the independence of religious institutions in a way that the First Amendment does not tolerate.

I

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The first of the two cases we now decide involves Agnes Morrissey-Berru, who was employed at Our Lady of Guadalupe School (OLG), a Roman Catholic primary school in the Archdiocese of Los Angeles. Excerpts of Record (ER) 58 in No. 17–56624 (CA9) (OLG).¹ For many years, Morrissey-

¹ A major theme of the dissent is that we do not heed the rule that, in deciding whether summary judgment is proper, a court must view the facts in the light most favorable to the party against whom summary judgment is sought. See *post*, at 766, 772, 774–775, 779 (opinion of SOTOMAYOR, J.). But the dissent, which approves of the Ninth Circuit’s reasoning, seems to forget that the Ninth Circuit in effect granted summary judgment *in favor of the teachers* on the issue of the applicability of the so-called ministerial exception. It did not remand for a trial on that issue but instead held that the exception did not apply. 769 Fed. Appx. 460, 460–461 (2019); 911 F. 3d 603, 605, 611, n. 6 (2018). Therefore, if any material facts were genuinely in dispute, the relevant parts of the record would have to be

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Berru was employed at OLG as a lay fifth or sixth grade teacher. Like most elementary school teachers, she taught all subjects, and since OLG is a Catholic school, the curriculum included religion. App. 23, 75. As a result, she was her students' religion teacher.

Morrissey-Berru earned a B. A. in English Language Arts, with a minor in secondary education, and she holds a California teaching credential. *Id.*, at 21–22. While on the faculty at OLG, she took religious education courses at the school's request, ER 41–ER 42, ER 44–ER 45, ER 276, and was expected to attend faculty prayer services, App. to Pet. for Cert. in No. 19–267, p. 87a.²

Each year, Morrissey-Berru and OLG entered into an employment agreement, App. 21,³ that set out the school's "mission" and Morrissey-Berru's duties. See, e. g., *id.*, at 154–164.⁴ The agreement stated that the school's mission was

viewed in the light most favorable to the schools. The dissent, however, does exactly the opposite.

In any event, the dissent's comments about summary judgment are so much smoke. It does not identify any disputed fact that is essential to our holding, and, although there are differences of opinion on certain facts, neither party takes the position that any *material* fact is genuinely in dispute.

²After bringing suit, Morrissey-Berru filed a declaration stating that she is "not currently a practicing Catholic." ER 248. It is unclear what Morrissey-Berru means by "practicing." There is, however, no hint in the record that Morrissey-Berru considered herself a non-practicing Catholic during her employment at OLG. See *infra*, at 740–741 (describing religious observation).

³This appears to have been a standard contract used within the Archdiocese of Los Angeles. See App. 154; cf. *id.*, at 230.

⁴It is not entirely clear from the record whether teachers at OLG must be Catholic. *Id.*, at 113 ("[Q.] Is it a requirement that a teacher be Catholic in order to teach at OLG School? Yes or no? [A.] Yes"); but see *ibid.* ("Exceptions can be made"); *id.*, at 154 ("If you are Roman Catholic[,] you must be in good standing with the Church" (emphasis added)). But it is clearly preferred. *Id.*, at 110.

“to develop and promote a Catholic School Faith Community,” *id.*, at 154, and it informed Morrissey-Berru that “[a]ll [her] duties and responsibilities as a Teache[r] were to be performed within this overriding commitment,” *ibid.*

The agreement explained that the school’s hiring and retention decisions would be guided by its Catholic mission, and the agreement made clear that teachers were expected to “model and promote” Catholic “faith and morals.” *Id.*, at 155. Under the agreement, Morrissey-Berru was required to participate in “[s]chool liturgical activities, as requested,” *ibid.*, and the agreement specified that she could be terminated “for ‘cause’” for failing to carry out these duties or for “conduct that brings discredit upon the School or the Roman Catholic Church,” *id.*, at 155–157. The agreement required compliance with the faculty handbook, which sets out similar expectations. *Id.*, at 156; App. to Pet. for Cert. in No. 19–267, at 52a–55a. The pastor of the parish, a Catholic priest, had to approve Morrissey-Berru’s hiring each year. *Id.*, at 14a; see also App. 164.

Like all teachers in the Archdiocese of Los Angeles, Morrissey-Berru was “considered a catechist,” *i. e.*, “a teacher of religio[n].” App. to Pet. for Cert. in No. 19–267, at 56a, 60a. Catechists are “responsible for the faith formation of the students in their charge each day.” *Id.*, at 56a. Morrissey-Berru provided religious instruction every day using a textbook designed for use in teaching religion to young Catholic students. *Id.*, at 45a–51a, 90a–92a; see App. 79–80. Under the prescribed curriculum, she was expected to teach students, among other things, “to learn and express belief that Jesus is the son of God and the Word made flesh”; to “identify the ways” the church “carries on the mission of Jesus”; to “locate, read and understand stories from the Bible”; to “know the names, meanings, signs and symbols of each of the seven sacraments”; and to be able to “explain the communion of saints.” App. to Pet. for Cert. in No. 19–267,

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at 91a–92a. She tested her students on that curriculum in a yearly exam. *Id.*, at 87a. She also directed and produced an annual passion play. *Id.*, at 26a.

Morrissey-Berru prepared her students for participation in the Mass and for communion and confession. *Id.*, at 68a, 81a, 88a–89a. She also occasionally selected and prepared students to read at Mass. *Id.*, at 83a, 89a. And she was expected to take her students to Mass once a week and on certain feast days (such as the Feast Day of St. Juan Diego, All Saints Day, and the Feast of Our Lady), and to take them to confession and to pray the Stations of the Cross. *Id.*, at 68a–69a, 83a, 88a. Each year, she brought them to the Catholic Cathedral in Los Angeles, where they participated as altar servers. *Id.*, at 95a–96a. This visit, she explained, was “an important experience” because “[i]t is a big honor” for children to “serve the altar” at the cathedral. *Id.*, at 96a.

Morrissey-Berru also prayed with her students. Her class began or ended every day with a Hail Mary. *Id.*, at 87a. She led the students in prayer at other times, such as when a family member was ill. *Id.*, at 21a, 81a, 86a–87a. And she taught them to recite the Apostle’s Creed and the Nicene Creed, as well as prayers for specific purposes, such as in connection with the sacrament of confession. *Id.*, at 20a–21a, 92a.

The school reviewed Morrissey-Berru’s performance under religious standards. The “‘Classroom Observation Report’” evaluated whether Catholic values were “infused through all subject areas” and whether there were religious signs and displays in the classroom. *Id.*, at 94a, 95a; App. 59. Morrissey-Berru testified that she tried to instruct her students “in a manner consistent with the teachings of the Church,” App. to Pet. for Cert. in No. 19–267, at 96a, and she said that she was “committed to teaching children Catholic values” and providing a “faith-based education,” *id.*, at 82a.